

Notice from the National Commission for Data Protection

regarding Bill No. 8089 on the electronic signature of acts in administrative matters and amending the law of July 25, 2015, on electronic archiving and the draft Grand-Ducal regulation establishing certain modalities for the application of the law on the electronic signature of acts in administrative matters and amending the law of July 25, 2015, on electronic archiving
Deliberation No. 45/AV18/2024 of July 4, 2024.

In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018, on the organization of the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Furthermore, Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative measure, which relates to processing."

Parliamentary amendments related to Bill No. 8089 on the electronic signature of acts in administrative matters and amending the law of July 25, 2015, on electronic archiving were adopted during the meeting of the Committee on Higher Education, Research, and Digitalization on May 21, 2024 (hereinafter referred to as the "parliamentary amendments").

By letter dated June 4, 2024, the Minister of Digitalization invited the National Commission to express its opinion on the parliamentary amendments.

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It should be noted that the CNPD was not initially consulted regarding the draft law no. 8089 concerning the electronic signature of acts in administrative matters and amending the law of July 25, 2015, relating to electronic archiving (hereinafter referred to as the "draft law"), nor the draft grand-ducal regulation establishing certain modalities for the application of the law relating to the electronic signature of acts in administrative matters and amending the law of July 25, 2015, relating to electronic archiving (hereinafter referred to as the "draft grand-ducal regulation").

The National Commission will hereinafter provide its remarks regarding the parliamentary amendments as well as the provisions of the initial draft law that raise issues related to the protection of personal data. It also intends to comment on the provisions of the draft grand-ducal regulation that aim to specify the technical and organizational measures to be taken in the context of the implementation of the secure platform.

1. Preliminary Remarks

It should be recalled that Article 6.1.e) of the GDPR, read in conjunction with Article 6.3 of the GDPR, provides a specific constraint related to the lawfulness of data processing necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

In this case, the basis, that is to say, the public interest mission in question, and in particular the purposes of the data processing must derive either from Union law or from the law of the Member State to which the data controller is subject, and this basis must meet "a public interest objective and is

proportionate to the legitimate objective pursued."

In a recent ruling, the Court of Justice, for example, stated that the "determination of the purposes and means of processing and, where appropriate, the designation of this controller by national law can be not only explicit but also implicit. In this latter case, it is nevertheless required that this determination arises with sufficient certainty from the role, mission, and powers conferred on the person or entity concerned."¹

In domestic law, it should be noted that Article 31 of the revised Constitution, applicable since July 1, 2023, states that "[e]very person has the right to informational self-determination and to the...

¹ CJEU, judgment of January 11, 2024, Belgian State/Data Protection Authority, C-231/22, EU:C:2024:7, paragraph 30.

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8.

Protection of personal data concerning the individual. Such data may only be processed for purposes and under conditions determined by law.

Therefore, taking into account that the protection of personal data is a matter reserved for law by the Constitution, the essence of the normative framework must result from the law, including the purposes, conditions, and modalities under which less essential elements may be regulated by regulations and orders issued by the Grand Duke. ² Indeed, according to the jurisprudence of the Constitutional Court, Article 45.2 of the Constitution requires that in these matters, "the setting of the objectives of the implementing measures must be clearly stated, as well as the conditions to which they are, if applicable, subject. The guidance and framework of the executive power must, in any case, be consistent, precise, and readable, the essence of the relevant provisions being expected to be included in the law." ³

However, in this case, some of the provisions under review do not comply with such requirements.

Indeed, it is particularly difficult for certain processes to identify who is responsible for the processing as well as the purposes of the processing carried out on the secure platform. The CNPD will address these points in more detail below.

II.

On the acts falling within the scope of the draft law

9.

It should be noted that the authors of the parliamentary amendments have followed the remarks made by the Council of State in its opinion of March 12, 2024, in that it recommended the removal of the definition of "acts in administrative matters." ⁵

¹⁰ Indeed, in its aforementioned opinion, the Council of State considered that "the authors [of the draft law] want to give the expression 'acts in administrative matters' a broad scope, aiming at both acts emanating from the administration and those that citizens address to the administration, 'the aim of the draft being to cover almost all acts likely to be produced both between the State and its citizens, and between the various state services in the broad sense.' Only acts under private signature and authentic acts that the State is required to execute are ultimately excluded from the scope of application, on the grounds that these acts are governed by other legal provisions," and further specifies that it "wonders whether a tangle of definitions as it appears in paragraph 3 of the article under review is truly necessary to achieve the objective thus described. In the eyes of the Council of State, it would suffice to provide in the draft law that..."

² See Articles 31 and 45 of the Luxembourg Constitution.

³ Constitutional Court, June 4, 2021, No. 166, Mém. A No. 440 of June 10, 2021, and Constitutional Court, March 3, 2023, No. 177, Mém. A, No. 127 of March 10, 2023.

4 See opinion No. 61.688 of December 22, 2023, of the Council of State, parliamentary document No. 8089/04.

5 See former Article 1.1 of the draft law.

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"Administrators may electronically sign any act they address to an administrative authority or to an entity exercising an administrative activity" and that "administrative authorities and entities exercising an administrative activity may electronically sign all acts related to the exercise of their activity."

III.

On the creation of a digital identifier

11. It should be noted that the ability for acts falling within the scope of the bill under review, which may bear an electronic signature or seal, requires the creation of a digital identifier.

12. Although the CNPD understands that the digital identifier would be linked to an act and not directly to an administrator, it wishes to draw the attention of the authors of the parliamentary amendments to the developments expressed by its French counterpart (the National Commission for Computing and Liberties) in its deliberation No. 2008-578 of December 18, 2008, concerning an opinion on a draft order relating to the creation of an online service called "mon.service-public.fr," according to which "the commission (...) took note that the numbers allowing the connection of the portal 'mon.service-public.fr' to the partner sites chosen by users would be random and non-significant alphanumeric character strings, allowing only the link between the online services, without the MSP technical system being able to know the sectoral identifiers of users. It notes that 'mon.service-public.fr' does not lead to a grouping of sectoral identifiers around a common identifier, and that the project does not aim to create a national administrative identifier. However, it considers that this question, fundamental in light of the major principles of the amended law of January 6, 1978, should be guaranteed by texts and not merely by technical measures, and that the principle of voluntary identity federation should be clarified. It thus requests that the draft order creating the portal 'mon.service-public.fr' expressly states that the system, while creating a link under the control of the user between different sectoral identifiers, should not lead to the creation of a 'unique administrative identifier' for users."

IV.

On the actors of the secure platform

13. The provisions of Article 3 of the bill, as amended, specify that "[a]ny act related to the exercise of their activity signed or sealed electronically by administrative authorities and entities exercising an administrative activity, intended for an administrator, must be provided with a..."

6 See opinion No. 61.688 of December 22, 2023, of the Council of State, parliamentary document No. 8089/04.

7 See new Article 3 of the bill, as amended.

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8. "Digital identifier for the purposes of verifying authenticity and preserving evidence of the electronic signature or seal."

14. Thus, a secure platform is intended to be created. This platform aims to achieve several objectives:

- allow the affixing of a digital identifier on the acts referred to in the bill under review;
- enable the reading of a digital identifier affixed to the acts referred to in the bill under review;
- verify the authenticity of the electronic signature or seal; and
- preserve the acts referred to in the bill under review, signed or sealed electronically.

15. This platform would be made available by the State's Information Technology Center (hereinafter referred to as the "CTIE") or, where applicable, through an equivalent platform that is interoperable with the secure platform.

16. The bill, as amended, specifies that "any administrative authority and entity exercising an administrative activity that has requested the creation of a digital identifier in accordance with this law is considered the data controller" and that the CTIE "as well as any operator of any equivalent platform is considered a processor" "in the operation of the platform." The CNPD welcomes such clarifications but wishes to draw the attention of the authors of the parliamentary amendments to the following points.

17. Regarding the determination of the data controller, the European Data Protection Board specifies that "for a specific processing operation, the data controller is the actor who has determined the reason for which the processing takes place (i.e., 'for what purposes' or 'why') and how that objective will be achieved (i.e., what means must be implemented to achieve the objective)."

18. The National Commission understands that the authorities or entities "exercising an administrative activity that has requested the creation of a digital identifier" will indeed have the quality of data controller.

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19. Indeed, attention should be drawn to the information notice "Protection of Personal Data" on the website "guichet.lu," which specifies that for the "MyGuichet.lu processing related to identification, (...) and provision of a storage space," the CTIE is considered the data controller. Therefore, the CNPD wonders whether a parallel can be drawn between the management by the CTIE of the secure platform under review and its management of the "MyGuichet.lu" site, particularly concerning the processing related to identification and the provision of a storage space. Should the CTIE be regarded as a data controller for certain processing activities provided for in the draft under review?

20. Furthermore, regarding the processing carried out for the purpose of verifying the authenticity of the electronic signature or seal, does the CTIE act merely as a subcontractor, or could it be considered jointly responsible with the administrative authority or entity performing an administrative activity, which is responsible for the processing?

21. It is, therefore, strongly recommended to conduct an analysis for each data processing activity carried out on the platform, examining the roles played by the various actors of the platform to ensure their exact legal qualification, namely that of data controller, joint data controllers, or subcontractor.

22. In any case, the National Commission believes that the processing carried out by the CTIE should be defined more precisely by Article 5.5 of the draft law. Indeed, the following formulation "in the operation of the secure platform," used by the new Article 5.5 of the draft law, appears to be too vague,

given the remarks made above.

****Website****

following

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V.

point

IV,

paragraphs

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to

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on

<https://guichet.public.lu/fr/citoyens/support/aspects-legaux.html>.

15 V. new Article 4, amendment 7.

16 V. Article 4.7 of the GDPR, and Guidelines 07/2020 on the concepts of data controller and processor in the GDPR, adopted on July 7, 2021, by the European Data Protection Board, point 2.1.3. CNPD

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V.

On the categories of data and the purposes of processing personal data

23.

The text under review further specifies that the purposes pursued by the data processing carried out within the framework of the platform are as follows:

“to enable the reading of the digital identifier, the verification of the authenticity of the electronic signature or seal, the preservation of electronically signed or sealed acts provided with a digital identifier, and access to the storage location via the digital identifier”;

“to enable the affixing of the digital identifier.”

24.

The categories of personal data to be processed for these purposes would be:

“the encrypted content of any act signed or sealed electronically and provided with a digital identifier”;

“the identity of the agent of the administrative authority or the entity exercising an administrative activity that requested the creation of a digital identifier.”

25.

The CNPD understands that all the categories of data stated above would be processed for all the purposes listed above. If this is not the case, it would be appropriate, for better understanding, to specify in the text under examination which categories of personal data are processed for which purposes.

26.

Furthermore, the National Commission wonders whether other categories of data would be processed for the purposes stated above. Indeed, are the categories of data listed in paragraph 4 of the new article 5 of the draft law not processed for some of the purposes mentioned in the aforementioned article 5.1? Although these are not retained on the platform, the CNPD understands that they could still be processed. Clarifications on this matter would merit being provided by the authors of the parliamentary amendments.

27.

Finally, attention should be drawn to the authors of the parliamentary amendments as well as to the authors of the draft law regarding the rules applicable to the processing of special categories of data

within the meaning of Article 9 of the GDPR. In the event that the acts falling within the scope of the draft text contain such data, it should be recalled that their processing is generally prohibited unless one of the conditions referred to in paragraph 2 of the aforementioned article is met.

17 V. Amendment No. 8, new article 5 of the draft law.

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28. It is the responsibility of the data controller to ensure compliance with such provisions and to ensure that, where applicable, the processing of special categories of data complies with one of the conditions referred to in paragraph 2 of the aforementioned article.

VI.

On the processing for the purpose of "preserving electronically signed or sealed documents provided with a digital identifier"

29. The explanatory memorandum of the initial bill specifies that "the digital identifier allows any citizen receiving the document, and any administration to which a citizen presents a copy of the document, to access, using this digital identifier, the place of preservation of the original document and to take note of it. It should be noted that the documents are accessible on the secure platform or equivalent platforms for a period of thirty years."

30. It also emerges from the commentary on the articles of the draft grand-ducal regulation that "the platform is indeed not intended to replace the electronic document management solutions currently used by administrative authorities and other entities, nor any potential long-term storage solutions for these documents."

31. Article 3 of the draft law, as amended, also specifies that the affixing of the digital identifier aims at the "preservation of proof of the electronic signature or seal."

32.

The CNPD understands, therefore, that the documents would be preserved in order to:

- preserve proof of the electronic signature or seal for citizens; and
- allow citizens, administrative authorities, or entities exercising an administrative activity to access the said electronically signed or sealed documents.

33. Regarding the preservation of proof of the electronic signature or seal, the National Commission understands that preservation would be necessary to guarantee the evidential value of such documents in electronic form to allow citizens to submit such documents as evidence in the event of a potential dispute.

34.

Insofar as the CTIE has the status of a Service Provider for Dematerialization or Preservation (hereinafter "PSDC") under the rules provided by the law of July 25, 2015, relating to electronic archiving, the National Commission wonders whether the documents would then be preserved under the conditions provided by the aforementioned law?

18 See explanatory memorandum of the initial bill, page 5.

19 See Chapter 2 of the law of July 25, 2015, relating to electronic archiving.

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35. Finally, although this technical solution for preservation is, according to the understanding of the CNPD, made available to the citizens, would this not also be the case for the administrations or entities exercising an administrative activity (although it is specified by the authors of the draft grand-ducal regulation that this preservation is not intended "to replace the electronic document management solutions currently used by administrative authorities and other entities, nor any potential long-term storage solutions for these acts")?

36. Clarifications regarding the questions raised by the National Commission should be provided.

VII. On the principle of data minimization

37. The provisions under review specify that under the principle of data minimization, the platform does not retain:

- "the names of the files containing the electronically signed or sealed acts received";
- "the plaintext content of the electronically signed or sealed acts received";
- "your digital identifiers generated by the secure platform as well as any equivalent platform associated with the electronically signed or sealed acts";
- "your data allowing the identification of the agents or citizens who accessed an electronically signed or sealed act based on a digital identifier."

38. While it is appropriate to commend the authors of the parliamentary amendments for including such provisions, it is regrettable that the reasons that led the authors of these provisions not to retain such data, under the guise of the principle of data minimization, are not included in the commentary on the amendments.

39. Such justifications would be welcome. Indeed, the CNPD is particularly wondering whether the data that would allow tracing access to the electronically signed or sealed acts are nonetheless retained on another medium.

VIII. On security measures

40. The data controller must respect the principle of integrity and confidentiality referred to in Article 5.1.f) of the GDPR. Furthermore, Article 32 of the GDPR states that "the data controller and the processor implement the technical and organizational measures."

20 See point 30 of this opinion.

21 See Article 5.1.e) of the GDPR.

22 See Amendment No. 8, new Article 5 of the draft law.

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appropriate measures to ensure a level of security commensurate with the risk." Such measures must be implemented to avoid, in particular, unauthorized access to data, data leaks, or unwanted modifications.

41. It should be emphasized that it is strongly recommended to define an access management policy, in order to be able to identify from the outset the person or service within the concerned entity, and to which specific data this person or service would have access.

42. Furthermore, it is necessary to establish an access logging system. In this regard, the CNPD recommends that log data be retained for a period of five years from their recording, after which they

are deleted, unless they are subject to a control procedure.

43. However, the technical and organizational measures concerning the implementation of the secure platform have the consequence that "[d]igital identifiers are also not stored, and consequently, the platform operator is not able to identify a specific act alone, nor to decrypt the stored data to retrieve the content of the received acts. This ensures that the confidentiality of public acts will be maintained even in the event of a compromise of the security of the secure platform. It also means that in the event of the loss of a digital identifier, the corresponding act stored in encrypted form on the platform can no longer be accessed permanently."

44. Moreover, as mentioned in the previous developments, "data allowing the identification of agents or citizens who accessed an electronically signed or sealed act based on a digital identifier" are not retained on the platform.

45. While such clarifications are welcome and understandable, the CNPD regrets that the authors of the draft Grand-Ducal regulation did not specify how the controller together with the subcontractor can comply with the requirements of Article 32 of the GDPR, particularly regarding access tracing. In the absence of clarifications on this matter, it questions whether access tracing is still possible? What concrete measures could be taken by the data controller in the event of unauthorized access to electronically signed or sealed acts?

46. Furthermore, the National Commission regrets that the technical modalities for accessibility of the platform by citizens and by administrative authorities or entities engaged in administrative activities have not been detailed. Clarifications on this subject would be warranted.

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IX.

On the Duration of Retention

47.

Pursuant to the principle of data retention limitation, personal data must not be retained longer than necessary for the purposes for which they are collected and processed. Beyond this, the data must be deleted or anonymized.

However, while data should generally be deleted once the purposes of processing have been achieved, this rule does not imply that data must be systematically deleted as soon as the objectives of processing have been met. Indeed, personal data follow a life cycle during which the data may have several successive uses. This means that for the same data, different durations may apply.

48. The amended draft law aims to establish a retention period of 30 years concerning the following personal data:

- the encrypted content of acts signed or sealed electronically and provided with a digital identifier; and
- the identity of the agent of the administrative authority or the entity exercising an administrative activity that requested the creation of a digital identifier.

49. However, in light of the previous developments, the National Commission wonders whether the authors of the parliamentary amendments have taken into account the life cycle of the collected data? Indeed, it appears from the text under review that the collected data are processed to affix an electronic signature or seal and allow the parties to access it, and then, in a second phase, are retained to ensure the authenticity of the document signed or sealed electronically, which may allow the citizens to submit such a document as evidence. Furthermore, the CNPD also questions whether distinct purposes for which the data are processed have been considered in determining the retention period.

This analysis should be conducted to best respect the principle of retention limitation. Moreover,

distinctions regarding the establishment of the retention period of data based on their life cycle or purposes should also be taken into account.

25 See Article 5. 1.e) of the GDPR.

26 See "Practical Guide: Retention Periods" (cnil.fr), version July 2020, published on the CNIL website.

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50.

Regarding the retention for a period of 30 years of the identity of the agent of the administrative authority or the entity exercising an administrative activity that requested the creation of a digital identifier, it is necessary to question whether this 30-year duration is adequate, relevant, and limited to what is necessary in light of the purposes for which this data is processed.

51. The National Commission wonders whether such data is retained for the purpose of tracing access or is retained to allow for the verification of the authenticity of the act?

52. Regarding the retention of the data under review for evidentiary purposes, it should be noted that it emerges from the commentary on the articles of the draft grand-ducal regulation that the platform is "not intended to replace the electronic document management solutions currently used by administrative authorities and other entities or any potential long-term storage solutions for these acts."

53.

The authors of the parliamentary amendments specify that "the thirty-year period corresponds to the general statute of limitations. Given that the secure platform is intended to retain the original version of an electronically signed administrative act, thus allowing for the verification of the authenticity of the act, this retention period aims to ensure that citizens can provide the necessary evidence to assert their rights under the same conditions as if they had an original in paper format. In other words, the provision aims to ensure equal treatment of all citizens regardless of the format in which an act is transmitted to them."

54.

The National Commission understands that the duration set by the draft law under review is aligned with the 30-year statute of limitations, in order to allow citizens to provide, if necessary, proof of the signature of the electronically signed or sealed act. However, it is worth questioning whether shorter statute of limitations periods would be applicable given the great diversity of acts that are likely to be signed or sealed electronically.

55.

It is also important to draw the attention of the authors of the parliamentary amendments to the fact that a different solution seems to have been adopted in France. Indeed, in France, legal provisions provide for the tele-service "Service-Public.fr" that "the online storage space is under the control and responsibility of its holder who can close it at any time."

56.

Finally, it results from all the previous developments that in the absence of clarification regarding the questions raised by the CNPD, it is unable to assess whether the principle of limitation of retention would be respected in this case. Thus adopted in Belvaux on July 4, 2024.

The National Commission for Data Protection

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